

ATTORNEY / CLIENT CONTINGENCY FEE RETAINER AGREEMENT

This document (the “Agreement”) is a written fee contract between **Halstead & Cruz LLP**, 88 South Grand Avenue, Suite 2400, Los Angeles, California 90071 (“Attorney”), and **Yolanda Reyes**, 612 Poplar Street, Rivergate, California 91766 (“Client”). Attorney will provide legal services to Client under the terms set forth below. The laws of the State of California govern the construction and interpretation of this Agreement.

1. Scope of Representation

Client is hiring Attorney for legal services in connection with Client’s claim for personal injuries and related damages arising out of the bus-vs-pedestrian collision that occurred on **10/18/2025** in downtown Rivergate, Los Angeles County, California, in which Client was struck by an Alder Creek Transit District bus operated by Raymond T. Keeler (the “Incident”).

The adverse parties presently identified are:

- **Alder Creek Transit District** (“ACTD”), a California public transit district; and
- **Raymond T. Keeler**, the operator of the ACTD bus involved in the Incident.

Attorney will provide those legal services reasonably required to investigate, prosecute, and, where appropriate, resolve Client’s claim, including compliance with any statutory pre-suit procedures applicable to claims against public entities under the California Government Claims Act, negotiations with adverse parties and their insurers, and, if warranted, the filing and litigation of a civil action for damages. Attorney will take reasonable steps to keep Client informed about the progress of the matter and to respond promptly to Client’s reasonable inquiries.

Attorney will represent Client until a settlement, arbitration award, or trial-court judgment is reached in the matter described above. Attorney is **not** obligated to prosecute or defend appeals, writ proceedings, post-judgment motions, or proceedings to enforce or collect on a judgment, without a separate written agreement covering that additional work.

Attorney makes no guarantees or promises to Client concerning the successful outcome of this matter, and makes no representation as to the ultimate value of Client’s claim. Any statements by Attorney regarding likely outcome are expressions of opinion only.

2. Professional Liability Insurance

Attorney maintains professional liability (errors and omissions) insurance coverage applicable to the services rendered under this Agreement.

3. Client’s Duties

Client agrees to be truthful, cooperative, and forthcoming with Attorney regarding the claim and all matters relevant to it, including Client’s prior claims history, prior injuries, and medical history. Client agrees to:

- (a) keep Attorney informed of Client’s current residence address, telephone number, and whereabouts;

- (b) appear, upon reasonable notice from Attorney, for meetings with counsel, medical examinations, depositions, arbitration, hearings, and trial;
- (c) preserve and promptly deliver to Attorney all documents, correspondence, photographs, records, and other tangible items in Client's possession or control that may relate to the Incident, Client's injuries, or Client's claim;
- (d) not communicate with any adverse party, insurer, investigator, or opposing counsel about the claim without first consulting Attorney; and
- (e) generally cooperate with Attorney in the preparation and presentation of the claim.

4. Legal Fees — Contingency Fee

Client acknowledges that Client has been advised by Attorney, and understands, that **contingency fees are not set by law and are negotiable between attorney and client**. Having been so advised, and bearing in mind that the contingency fee is negotiable, Client agrees that the following fee arrangement is fair and reasonable:

- (a) If Client's claim is resolved by settlement or compromise **before** the filing of a civil complaint or the making of a written demand for binding arbitration, Attorney's fee shall be an amount equal to **thirty-three and one-third percent (33⅓%)** of the gross recovery.
- (b) If Client's claim is resolved by settlement, arbitration award, or judgment **after** the filing of a civil complaint or written demand for binding arbitration, but before the filing of a notice of appeal, Attorney's fee shall be an amount equal to **forty percent (40%)** of the gross recovery.
- (c) If any judgment in this matter is appealed by any party, or if post-trial or appellate proceedings become necessary and Attorney and Client execute a separate written agreement for Attorney to prosecute or defend such proceedings, Attorney's fee for all recovery obtained after a notice of appeal has been filed shall be an amount equal to **forty-five percent (45%)** of the gross recovery.

If **no recovery** is obtained, Client owes nothing for attorney's fees.

The contingency fee is calculated from the **gross recovery** obtained for Client. Costs advanced by Attorney (see Section 6), medical liens, subrogation interests, unpaid medical bills, and other similar deductions will be deducted from the recovery **after** Attorney's fees have been calculated. Attorney is entitled to the full contingent fee on any settlement, arbitration award, or judgment of Client's claim, and is granted a lien for fees and costs upon any such recovery. Attorney is authorized to deduct fees and costs from any recovery and remit the balance to Client.

Client further understands that:

- The fee percentages set forth above are **not** required by law and were arrived at by negotiation between Attorney and Client.
- Because this matter does not arise from professional negligence of a health-care provider, Business and Professions Code § 6146 does not limit the fee; the parties have therefore negotiated the fee freely as set forth above.

5. Fee Splitting

Attorney may, at no additional expense to Client, divide the fee described in Section 4 with another attorney, provided that any such division complies with rule 1.5.1 of the California Rules of Professional Conduct and Client's written consent is obtained where required.

6. Legal Costs and Expenses

Attorney will advance the costs and litigation expenses reasonably necessary to investigate and prosecute Client's claim. Advanced costs and expenses may include, without limitation: court filing and appearance fees; service of process charges; deposition and court-reporter fees; investigator fees; record-retrieval and copying charges; consultant and expert-witness fees; accident-reconstruction, life-care-planning, and economic-analysis fees; mediation or arbitration fees; travel and mileage at the applicable IRS rate; notary and delivery fees; and similar items.

All such costs and expenses are ultimately the responsibility of Client and, upon resolution of the matter, will be deducted from the gross recovery after Attorney's fees have been calculated pursuant to Section 4. Attorney will not seek reimbursement of advanced costs from Client where no recovery is obtained, provided that (1) Client has followed Attorney's reasonable advice throughout the representation; (2) Attorney has represented Client through the conclusion of the case; and (3) Client has been completely truthful with Attorney regarding the claim, including Client's prior claims history and medical history.

Attorney charges a flat **\$150.00** administrative fee for postage, copying, telephonic, and similar in-house items not separately billed under the preceding paragraph, payable at the time of resolution.

7. Settlement Authority

Attorney will not enter into any settlement or compromise of Client's claim without Client's prior consent. Client agrees not to enter into any settlement or compromise of the claim without prior notice to Attorney. Client authorizes Attorney to endorse settlement drafts on Client's behalf and to deposit such drafts into Attorney's client trust account for disbursement in accordance with this Agreement.

8. Discharge and Withdrawal

Client may discharge Attorney at any time upon written notice to Attorney. Upon discharge, Attorney will promptly cease rendering additional services. Discharge does not relieve Client of the obligation to pay costs already advanced by Attorney or costs incurred prior to termination, and does not extinguish Attorney's lien for the reasonable value of services rendered up to the date of discharge.

Attorney may withdraw from representation only (a) with Client's consent; (b) with court approval where required; or (c) upon reasonable written notice to Client where court approval is not required, and in each case in compliance with the California Rules of Professional Conduct. Upon withdrawal for good cause, Attorney retains the right to recover the reasonable value of legal services rendered through the date of withdrawal, to be determined in consideration of: (a) the number of hours expended by Attorney; (b) Attorney's regular hourly rate of \$525.00 per hour; (c) the extent to which Attorney's services have contributed to any result obtained; (d) the proportion of Attorney's fee to the value of the services performed; and (e) the amount of any recovery obtained.

9. Attorney's Lien

Client hereby grants Attorney a lien on any and all claims, causes of action, or rights of recovery of Client that are the subject of this Agreement. Attorney's lien secures payment of all fees earned under Section 4 and all costs and expenses advanced under Section 6. The lien attaches to any recovery Client obtains, whether by settlement, arbitration award, judgment, or otherwise.

10. Authority

Client authorizes Attorney to execute, on Client's behalf, all documents reasonably necessary or appropriate in connection with the claim, including pleadings, verifications, discovery responses, tort-claim documents, settlement drafts, releases, and stipulations that Client could properly execute personally. Client authorizes Attorney to receive any monies or other things of value payable to Client as a result of the claim, to deposit the same into Attorney's client trust account, and to disburse the proceeds in accordance with this Agreement.

11. Entire Agreement; Amendment; Severability

This Agreement comprises the entire fee contract between Attorney and Client and supersedes all prior discussions and understandings regarding the subject matter. It may be amended only by a writing signed by both Attorney and Client. If any provision is held unenforceable, the remainder of the Agreement shall remain in full force and effect.

STATEMENT OF CLIENT'S RIGHTS (Business & Professions Code § 6147)

Pursuant to California Business and Professions Code § 6147, Attorney provides Client with the following disclosures, and Client acknowledges receipt of and agrees to each:

- (1) A statement of the contingency fee rate that Client and Attorney have agreed upon is set forth in Section 4 of this Agreement.
- (2) A statement as to how disbursements and costs incurred in connection with the prosecution or settlement of the claim will affect the contingency fee and Client's recovery is set forth in Sections 4 and 6 of this Agreement. Costs and expenses will be deducted from the gross recovery **after** the contingency fee has been calculated on the gross recovery.
- (3) A statement as to what extent, if any, Client could be required to pay any compensation to Attorney for related matters that arise out of the client-attorney relationship but are not covered by the contingency fee arrangement is set forth in Sections 1, 6, and 8: Client will not be charged additional attorney's fees for matters within the scope defined in Section 1; any appellate, post-judgment, writ, or enforcement work is not within the fee arrangement and requires a separate written agreement; and the reasonable value of services provision in Section 8 applies only in the event of withdrawal for good cause.
- (4) A statement that the fee is **not set by law** but is negotiable between attorney and client. Client acknowledges that Client has been so informed and has, in fact, negotiated the fee terms set forth in Section 4.
- (5) This matter does not arise out of professional negligence by a health-care provider; accordingly, the limitations of Business and Professions Code § 6146 do not apply and the fee is negotiable as

stated above.

No Guarantee of Outcome

Client acknowledges that Attorney has made **no guarantee, promise, or representation** as to the outcome, value, or ultimate resolution of Client's claim. Any opinion Attorney may have expressed regarding likely outcome, settlement value, or duration of the matter is an expression of professional opinion only and is not a warranty. Client understands that litigation is inherently uncertain and that adverse rulings, defenses, procedural bars, statutes of limitation, or claims-presentation requirements applicable to public-entity defendants may materially affect the availability or amount of any recovery.

Execution

The parties have read this Agreement in its entirety, have had the opportunity to ask questions and consult with independent counsel, and by their signatures below acknowledge their agreement to be bound by its terms. Client acknowledges receipt of a fully executed duplicate original of this Agreement at the time of signing, in compliance with Business and Professions Code § 6147(a).

CLIENT

Signature: /s/ *Yolanda Reyes*_____

Printed Name: **Yolanda Reyes**

Date: **03/05/2026**

Address: 612 Poplar Street, Rivergate, CA 91766

ATTORNEY

Signature: /s/ *Nora Halstead*_____

Printed Name: **Nora Halstead**, Esq. (SBN **369314**)

Firm: **Halstead & Cruz LLP**

Address: 88 South Grand Avenue, Suite 2400, Los Angeles, CA 90071

Telephone: (213) 555-0170

Date: **03/05/2026**